

The Census of Manufacturing Industries Rules, 1951

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State of Rajasthan - Act

The Census of Manufacturing Industries Rules, 1951

RAJASTHAN

India

The Census of Manufacturing Industries Rules, 1951

Rule THE-CENSUS-OF-MANUFACTURING-INDUSTRIES-RULES-1951 of 1951

Published on 19 February 1952

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The Census of Manufacturing Industries Rules, 1951

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In exercise of the powers conferred on them by section 12 (i) of the Industrial Statistics Act, 1942, the Government of Rajasthan is pleased to make the following rules for the census of manufacturing industries after having published the Draft of these Rules for public comments in the Extraordinary issue of the Rajasthan Rajpatra, Part III, No. 64 of the 5th July, 1951.

1.

Short title and commencement.

- These rules may be called the Census of Manufacturing Industries Rules, 1951.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context.-

(a)

"Act" means the Industrial Statistics Act, 1942.

(b)

"Company" means an incorporated company wheresoever incorporated;

(c)

"Factory" means a factory as defined in clause (m) of section 2 of the Factories Act, 1948;

(d)

"Form" means a form set forth in Schedule II appended to these rules;

(e)

"Manufacturing process" means manufacturing process as defined in clause (k) of section 2 of the Factories Act, 1948;

(f)

"Occupier" means the occupier of a factory as defined in clause (n) of section 2 of the Factories Act, 1948;

(g)

"Schedule" means schedule appended to these rules;

(h)

"Section" means a section of the Act;

(i)

"Statistics Authority" means the Statistics Authority appointed by the Government of Rajasthan under section 4.

3.

Time to demand statistics and notice.

(1)

The Statistics Authority shall before the end of December or, the case of a factory engaged in the sugar industry, before the end of June in each factory which is engaged in Schedule I or which having previously so engaged, has temporarily suspended manufacturing processes, a notice requiring him to furnish to the Statistics Authority.

(a)

a return, in duplicate in the form appropriate to the industry in which the factory is or has been engaged, relating to the next following calendar year or, in the case of a factory engaged in the sugar industry, the next following annual period commencing with the 1st July and ending with the 30th June, and

(b)

if the factory is owned by a company, two copies each of the annual balance sheet and profit and loss account, and of the directors' report, if any, for the period to which the return relates, if the company's accounting year coincides with this period, otherwise for the period for which the accounts of the company were last closed;

and if any factory, which was not in existence or was not engaged in any such industry in December or, in the case of sugar industry, in June, in any year engages or is about to engage in any such industry during the next following calendar year or, in the case of sugar industry, during the next following annual period as aforesaid, or, if any factory required to be served with a notice under this rule is, for any reason, not served with the notice within time, the Statistics Authority should serve such notice on the occupier of such factory as soon as may be and thereupon the provision of this sub-rule shall apply as if the period to which the return related were the whole of the calendar year or annual period, as the case may be, unless the factory was not engaged in the industry during any portion thereof.

(2)

If the occupier of any factory on whom a notice has been served under sub-rule (1) (hereinafter called the first occupier), at any time during the period to which the return required to be furnished under such notice relates, ceases to be the occupier of the factory, and some other person (hereinafter called the second occupier) becomes the occupier thereof the first occupier shall immediately on ceasing to be the occupier inform the Statistics Authority of the change of occupancy and the name and address of the second occupier and the Statistics Authority shall, as soon as may be, serve on the second occupier a notice requiring him to furnish to the Statistics Authority-

(a)

a return in duplicate in the form appropriate to the industry in which the factory is engaged relating to that part of the said period during which the second occupier is the occupier of the factory, and

(b)

if after the change of occupancy the factory is owned by a company, two copies of such of the documents which may be required to be furnished under clause (b) of sub-rule (1).

(3)

If the occupancy of a factory changes more than once during the period to which the return required to be furnished under a notice served on the occupier thereof under sub-rule (1) relates, the provisions of sub-rule (2) shall apply on each occasion as if the outgoing occupier were the first occupier and the incoming occupier were the second occupier.

4.

Occupier of factory to furnish requisite returns and documents.

(1)

Any occupier of a factory on whom a notice has been served under rule 3 shall furnish the return and documents as required thereunder so as to reach the Statistics Authority not later than two months after the expiry of the period to whom the return relates:

Provided that:-

(i)

any such occupier, who at any time during the period to which the return required to be furnished under the notice relates, ceases to be the occupier of the factory, shall furnish a return and documents as aforesaid relating to that part of the said period during which he was the occupier of the factory so as to reach the Statistics Authority not later than two months after his ceasing to be the occupier.

(ii)

if any factory, on the occupier of which a notice has been served under rule 3, is dismantled or otherwise ceases to be a factory at any time during the period to which the return required to be furnished under the notice relates, the occupier shall furnish a return and documents as aforesaid relating to that part of the said period during which the factory was in existence so as to reach the Statistics Authority not later than two months after the factory ceased to exist: and

(iii)

in the case of a factory owned by a company whose accounting year coincides with the period to which the return relates, the documents referred to in clause (b) of sub-rule (1) of rule 3 may be sent, separately from the return, not later than four months after the expiry of the period to which the return relates.

(2)

If on representation being received from an occupier before the date on which the return and documents are required to be furnished under this rule, the Statistics Authority is satisfied that there is sufficient reason for so doing, the Statistics Authority may-

(a)

allow an extension of time for submission of the return upto one month beyond the said date,

(b)

in the case of a factory owned by a company, allow apart from the provisions of proviso (iii) to sub-rule (1), copies of the balance sheet, and Profit and Loss Account and of the director's report, if any, to be submitted separately from the return by such date as he may specify.

5.

Time within which returns to be submitted.

- The occupier of a factory shall, when required to do so by the Statistics Authority, furnish, by such time as the Statistics Authority may prescribe, any further information in explanation of the particulars entered by him in the return submitted by him under Rule 4.

6.

Form to be supplied by statistics authority.

(1)

The Statistics Authority shall forward with the notices referred to in sub-rules (1) and (2) of rule 3, three copies of the form in which the occupier on whom the notice is served is required to furnish a return. Two copies of the form shall be used for the purpose of submission of the return as required by rule 4, and on the third copy the occupier shall retain an

exact copy of the return submitted by him.

(2)

If the occupier of any factory receives with a notice served on him under rule 3 copies of a form which is not appropriate to the industry in which the factory is or has been engaged, he shall within seven days of the receipt of the said notice intimate to the Statistics Authority the industry in which in his opinion the factory is engaged, the principal products of the factory and the anticipated approximate value of each such product during the period for which the return is required: and upon the receipt of such information, whether within time or not, the Statistics Authority shall determine the industry in which the factory is engaged and, if it is an industry specified in schedule I, shall as soon as may be after the receipt of such information serve upon the occupier a notice requiring him to furnish a return and documents as provided for in rule 3 in relation to that industry, forwarding there with three copies of the form appropriate to that industry, and the provisions of these rules shall apply and the occupier shall furnish a return as if the fresh notice were the original notice and had been received on the date on which the original notice was received.

(3)

If any factory on the occupier of which a notice has been served under rule 3 at any time subsequent to such service becomes engaged in a different industry from that in which it was previously engaged, the occupier shall within seven days of the factory becoming so engaged, intimate to the Statistics Authority the industry in which in his opinion the factory will thenceforth be engaged, the principal products of the factory and the anticipated approximate value of each such product during the entire period for which the return is required: and upon the receipt of such intimation, whether within time or not, the Statistics Authority shall, after making such further enquiries as he may consider necessary, determine the industry in which the factory is engaged and, if it is an industry specified in Schedule I, shall, as soon as may be, serve upon the occupier a notice requiring him to furnish a return and documents as provided for in rule 3 in relation to the industry, forwarding therewith three copies of the form appropriate to that industry, and the provisions of these rules shall apply and the occupier shall furnish a return as if the fresh notice were the original notice and had been received on the date on which the original notice was received.

7.

Mode of service of notice for.

(1)

Any notice required to be served and any return required to be furnished under these rules shall be served or furnished, as the case may be, by transmission through the post under registered cover with acknowledgment due, and on the outside of any cover-

(a)

containing a notice, the Statistics Authority shall cause to be written prominently the words "Notice under the Census of Manufacturing Industries Rules, 1951";

(b)

containing a return or other documents required to be furnished by an occupier, the occupier shall cause to be written prominently the words "Confidential-Return under the Census of Manufacturing industries Rules, 1951".

(2)

Any notice required to be served on the occupier of a factory under these rules may be served-

(a)

when the occupier is a corporation or firm, on any director or other principal officer of the corporation or on any member of the firm or by addressing the same in the name of the corporation or firm at its registered office or the place where it carries on business in India;

(b)

when the occupier is a person (not being a corporation or firm) on the person at the usual or the last known place of abode or business of such person;

and such service shall be deemed to be good service as against the corporation, all partners of the firm or as against the person, as the case may be.

8.

Medium English.

- All information required to be furnished under these rules shall be furnished in English.

I

List of Industries

1. Wheat flour.
2. Rice milling.
3. Biscuit, making (including bakeries and confectioneries).
4. Fruit and vegetable processing.
5. Sugar.
6. Distilleries and breweries (including power alcohol manufacturing).
7. Starch.
8. Vegetable oils-oil seed crushing, and extraction and processing of vegetable oils.
9.
Paints and varnishes.
10.
Soap.
11.
Tanning.
12.
Cement.
13.
Glass and glassware.
14.
Ceramics.
15.
Plywood and tea chests.
16.
Paper and paperboard (including strawboard).
17.
Matches.
18.
Cotton textiles-spinning and weaving.
19.
Woolen textiles.
20.
Jute textiles.
21.
Chemicals including drugs pharmaceuticals.
22.
Aluminiums copper an brass-all processes from ore smelting to manufacture of final products ready for use.
23.
Iron and Steel-smelting (including blast furnace operations) rolling and re-rolling.
24.
Bicycles.
25.
Sewing machines.
26.
Producer gas plants.
27.
Electric lamps.
28.
Electric fans.
29.
General Engineering and Electrical Engineering (excluding generation and transformation of electrical energy).

30.
Footwear and leather manufactures.
31.
Rubber and Rubber manufactures (including rubber substitutes).
32.
Enamelware.
33.
Hume pipes and other cement and concrete products (including reinforced products).
34.
Asbestos and asbestos cement products.
35.
Bricks, tiles, lime and surkhi manufacturing.
36.
Lac.
37.
Turpentine and Rasin.
38.
Plastics (including manufacture of gramophone records).
39.
Petroleum refining.
40.
Saw milling.
41.
Woodware (including furniture manufacturing).
42.
Tea manufacturing.
43.
Tobacco products.
44.
Groundnut decorticating cashew-nut processing and dal manufacturing.
45.
Printing (including lithographing) and book-binding.
46.
Webbing, narrow fabrics, embroidery and lace manufacturing.
47.
Hosiery and other knitted goods.
48.
Thread and thread ball making.
49.
Textiles, dyeing, bleaching, finishing and processing (including mercerising, finishing, calendering, glazing, proofing, etc.)
50.
Clothing and tailoring.
51.
Cotton ginning and pressing.
52.
Rope making.
53.
Silk and artificial silk.
54.
Jute pressing.

55.

Electricity generation and transformation.

56.

Automobiles and coach building.

57.

Ship building and ship repairs (including ship yards and dock-yards).

58.

Railway workshop, repair shops and locomotive shops.

59.

60.

Aircraft assembling, repairs and servicing.

61.

Railway wagon manufacturing.

62.

Textile machinery and accessories (bobbins, shuttles, healds, reeds, pickers, etc.)

63.

Unspecified industries.

II

List of Forms

Number of forms

Name of Industry to which forms relates.

1

2

C.M.I. - (1)

Wheat flour

C.M.I. - (2)

Rice milling

C.M.I. - (3)

Biscuit making (including bakeries and confectioneries)

C.M.I. - (4)

Fruit and vegetable processing.

C.M.I. - (5)

Sugar.

C.M.I. - (6)

Distilleries and breweries (including power alcohol manufacturing).

C.M.I. - (7)

Starch.

C.M.I. - (8)

Vegetable oils-oil seed crushing, and extraction and processing of vegetable oils.

C.M.I. - (9)

Paints and varnishes.

C.M.I. - (10)

Soap.

C.M.I. - (11)

Tanning.

C.M.I. - (12)

Cement.

C.M.I. - (13)

Glass and glassware.

C.M.I. - (14)

Ceramics.

C.M.I. - (15)

Plywood and tea chests.

C.M.I. - (16)

Paper and paperboard (including strawboard).

C.M.I. - (17)

Matches.

C.M.I. - (18)

Cotton textiles-spinning and weaving.

C.M.I. - (19)

Woolen textiles.

C.M.I. - (20)

Jute textiles.

C.M.I. - (21)

Chemicals including drugs and pharmaceuticals.

C.M.I. - (22)

Aluminums copper an brass-all processes from ore smelting to manufacture of final products ready for use.

C.M.I. - (23)

Iron and Steel-smelting (including blast furnace operations) rolling and re-rolling.

C.M.I. - (24)

Bicycles.

C.M.I. - (25)

Sewing machines.

C.M.I. - (26)

Producer gas plants.

C.M.I. - (27)

Electric lamps.

C.M.I. - (28)

Electric fans.

C.M.I. - (29)

General Engineering and Electrical Engineering (excluding generation and transformation of electrical energy).

C.M.I. - (30)

Footwear and leather manufactures.

C.M.I. - (31)

Rubber and Rubber manufactures (including rubber substitutes).

C.M.I. - (32)

Enamelware.

C.M.I. - (33)

Hume pipes and other cement and concrete products (including reinforced products).

C.M.I. - (34)

Asbestos and asbestos cement products.

C.M.I. - (35)

Bricks, tiles, lime and surkhi manufacturing.

C.M.I. - (36)

Lac.

C.M.I. - (37)
Turpentine and Rasin.
C.M.I. - (38)
Plastics (including manufacture of gramophone records).
C.M.I. - (39)
Petroleum refining.
C.M.I. - (40)
Saw milling.
C.M.I. - (41)
Woodware (including furniture manufacturing).
C.M.I. - (42)
Tea manufacturing.
C.M.I. - (43)
Tobacco products.
C.M.I. - (44)
Groundnut decorticating cashew-nut processing and dal manufacturing.
C.M.I. - (45)
Printing (including lithographing) and book-binding.
C.M.I. - (46)
Webbing, narrow fabrics, embroidery and lace manufacturing.
C.M.I. - (47)
Hosiery and other knitted-goods.
C.M.I. - (48)
Thread and thread ball making.
C.M.I. - (49)
Textiles, dyeing, bleaching, finishing and processing (including mercerising, finishing, calendering, glazing, proofing, etc.)
C.M.I. - (50)
Clothing and tailoring.
C.M.I. - (51)
Cotton ginning and pressing.
C.M.I. - (52)
Rope making.
C.M.I. - (53)
Silk and artificial silk.
C.M.I. - (54)
Jute pressing.
C.M.I. - (55)
Electricity generation and transformation.
C.M.I. - (56)
Automobiles and coach building.
C.M.I. - (57)
Ship building and ship repairs (including ship yards and dock-yards).
C.M.I. - (58)
Railway workshop, repair shops and locomotive shops.
C.M.I. - (59)
C.M.I. - (60)
Aircraft assembling, repairs and servicing.

C.M.I. - (61)

Railway wagon manufacturing.

C.M.I. - (62)

Textile machinery and accessories (bobbins, shuttles, healds, reeds, pickers, etc.)

C.M.I. - (63)

Unspecified industries.

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